Notification Waiver Determination

Tasmanian Department of Health – leasehold interest in vacant site at Hobart International Airport

Acquisition	The Crown in Right of Tasmania (acting through the Tasmanian Department of Health) (**TDoH**) applied for a notification waiver in respect of its proposed acquisition of a leasehold interest in land located in the aviation support precinct at Hobart International Airport from Hobart International Airport Pty Ltd, as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	26 October 2026

Parties to the Acquisition	The acquirer, TDoH, is part of the state government of Tasmania. The lessor, Hobart International Airport Pty Ltd, is the private operator of Hobart Airport and surrounding airport precinct. It entered into a 99-year lease with the Commonwealth Government in 1998. TDoH currently operates a kitchen facility at the northern end of the airport passenger terminal building at Hobart International Airport.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. the Acquisition involves the relocation and expansion of the kitchen facility from one area of the Hobart International Airport to another, and would not result in any horizontal consolidation or the removal of a competitor b. there appear to be alternative providers of catering services, and other sites available for providers of these services, in the area around Hobart International Airport. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.

	Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Woodward pursuant to a delegation under section 25(1) of the Act